IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, COURT – II

Item No. 4
CA-(CAA)-50/ND/2021

IN THE MATTER OF:

Vikartan Investment Pvt. Ltd. With Makams Industries Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 26.04.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (J)

SHRI L.N. GUPTA,
HON'BLE MEMBER (T)

PRESENT:
None

ORDER

Order pronounced in the Open Court today.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

(SAPNA)

NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-50/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

VIKARTAN INVESTMENT PRIVATE LIMITED
...Applicant No.1/Transferor Company

AND

OMKARESHWARI EXIM LIMITED
...Applicant No.2/ Transferor Company

AND

IKSHAN ENTERPRISE LIMITED
...Applicant No.3/ Transferor Company

WITH

MAKAMS INDUSTRIES PRIVATE LIMITED
..Applicant No. 4/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 26.04.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Pradeep K. Mittal, Adv.

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)50/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation', which shall take effect from the 'Appointed Date' of 01.04.2020.

2. That Vikartan Investment Private Limited (hereinafter referred as the **"Transferor Company No.1")** having CIN no. U74899DL1995PTC071166 is a private limited Company incorporated on 26.07.1995 under the Erstwhile Companies Act, 1956. The registered office of the Transferor Company No.1 is located at F-12, Adarshini Plaza 91, Adhchini, Sri Aurobindo Marg, New Delhi-110017.

3. That Omkareshwari Exim Limited (hereinafter referred as the **"Transferor Company No. 2"**) having CIN no. U18109DL2015PLC277865 is a Company incorporated on 13.03.2015 under the Companies Act, 2013. The registered office of the Transferor Company No.2 is situated at F-12, Adarshini Plaza 91, Adhchini, Sri Aurobindo Marg, New Delhi-110017.

4. That Ikshan Enterprise Limited (hereinafter referred as the **"Transferor Company No. 3"**) having CIN no. U17219DL2016PTC292000 is a Company incorporated on 02.03.2016 under the Companies Act, 2013. The registered office of the Transferor Company No.3 is situated at F-12, Adarshini Plaza 91, Adhchini, Sri Aurobindo Marg, New Delhi-110017.

5. That Makams Industries Private Limited (hereinafter referred as the **"Transferee Company"**) having CIN no. U22211DL2009PTC189774 is a company incorporated on 27.04.2009 under the Erstwhile Companies Act, 1956. The registered office of the Transferee Company is situated at F-12, Adarshini Plaza 91, Adhchini, Sri Aurobindo Marg, New Delhi-110017.

6. That the present Petition has been filed jointly by all the Transferor Companies and Transferee Company. All the 'Transferor Companies' and 'Transferee Company' together are called 'Applicant Companies' hereinafter. That the Registered offices of all the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

7. It is seen from the record that the Board of Directors of all the Applicant Companies vide separate meetings held on 16.12.2020 have approved the proposed 'Scheme of Amalgamation'.

8. It is averred by the Applicant Companies that the aforesaid Scheme of Amalgamation will result in the following advantages :

"i) consolidation of the businesses presently being carried on by the Transferor Companies and the Transferee Company, which shall be beneficial to the interests of the shareholders, creditors and employees of both the companies and to the interests of public at large, as such amalgamation would create greater synergies between the businesses of both the companies and would enable them to manage their business more efficiently by effectively pooling the technical and marketing skills of both the Companies as an integrated entity and also enable effective management and unified control of operations;

ii) creating better synergies and optimal utilisation of resources built by the Transferor Companies;

iii) better administration and cost reduction (including reduction in administrative and other common costs) and

(iv) better utilisation of professional expertise and other manpower resources....."

9. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that the Applicant Companies are not under any prosecution/ investigation/ inquiry under the Companies Act, 2013.

10. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors confirming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act, 2013.

11. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2020.

12. That the position regarding the Applicant Company-wise no. of Shareholders and Creditors and their consent through Affidavits is summarised below :

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Secured Creditors	Percentage of Unsecured Creditors given Consent (in value)	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
Vikartan Investment Private Limited Applicant No.1 Company/ Transferor	5	100%	Nil	NA	Nil	NA
Omkareshwari Exim Limited Applicant No.2/ Transferor Company	7	100%	Nil	NA	2	100% (in value)
Ikshan Enterprise Limited Applicant No.3/ Transferor Company	7	100%	Nil	NA	1	100% (in value)
Makams Industries Private Limited Applicant No.4/ Transferee Company	3	100%	1	100%	4	100% (in value)

13. That all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

14. That the '100% (in value)' of unsecured creditors of all the Applicant Companies No. 2 to 4 have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of the Applicant Companies No. 2 to 4 is dispensed with. Further, there are no unsecured creditors in the Applicant No. 1 Company. Therefore, the requirement of convening their meeting does not arise.

15. That there is only one Secured Creditor in the Transferee Company. The sole secured creditor has given 'no objection' to the Scheme on an affidavit. Therefore, the requirement of convening the Meeting of Secured Creditors in respect of the Transferee Company is dispensed with. Further, there are no secured creditors in rest of the Applicant Companies, therefore, the requirement of convening their meeting does not arise

16. **The Application is allowed in the aforesaid terms.**

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)